



Bill Number: S.B. 1003

Kavanagh Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires the officer who conducts an election and the officer who tabulated the ballots for the election to certify, under oath to the governing body, the accuracy of the election and the results of the tabulation.
2. Requires the acknowledgement of the canvass of the election without prejudice to be postponed from day to day until all returns are received from the officers who conducted and certified the results of the election, or until six postponements have been made.
3. Adds a copy of the sworn statements of the election officers who conducted the election and tabulated the ballots to the list of information shown in the official canvass.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1003
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-642, Arizona Revised Statutes, is amended to
3 read:

4 16-642. Canvass of election; postponements

5 A. The governing body holding an election shall meet and
6 ACKNOWLEDGE WITHOUT PREJUDICE THE canvass OF the election as follows:

7 1. [THE COUNTY OFFICER WHO CONDUCTED THE ELECTION SHALL CERTIFY ITS
8 ACCURACY UNDER OATH AND THE COUNTY OFFICER WHO TABULATED THE BALLOTS SHALL
9 CERTIFY THE RESULTS OF THE TABULATION UNDER OATH TO] the governing board
10 of a county [., WHICH] shall meet and ACKNOWLEDGE WITHOUT PREJUDICE THE
11 canvass OF THE ELECTION as follows:

12 (a) For the primary election, not later than the second Monday
13 after the election.

14 (b) For the general election, not later than the third Thursday
15 after the election.

16 2. The secretary of state shall ACKNOWLEDGE WITHOUT PREJUDICE THE
17 canvass OF THE ELECTION as follows:

18 (a) For the primary election, not later than the third Thursday
19 after the election.

20 (b) For the general election, not later than the third Monday after
21 the election.

22 3. [THE OFFICER WHO CONDUCTED THE ELECTION SHALL CERTIFY ITS
23 ACCURACY UNDER OATH AND THE OFFICER WHO TABULATED THE BALLOTS SHALL
24 CERTIFY THE RESULTS OF THE TABULATION UNDER OATH TO] the governing body of
25 a city, town or special district [., WHICH] shall meet and ACKNOWLEDGE
26 WITHOUT PREJUDICE THE canvass OF the election not less than six days and
27 not more than twenty days following the election.

28 B. [THE OFFICER WHO CONDUCTED THE ELECTION SHALL CERTIFY ITS
29 ACCURACY UNDER OATH AND THE OFFICER WHO TABULATED THE BALLOTS SHALL

1 CERTIFY THE RESULTS OF THE TABULATION UNDER OATH TO] the governing body of
2 a special district as defined in title 48 [. WHICH] shall present to the
3 board of supervisors a certified copy AND AN ACKNOWLEDGEMENT WITHOUT
4 PREJUDICE of the official canvass of the election at the next regularly
5 scheduled meeting of the board of supervisors. For purposes of contesting
6 a special district election as described in section 16-673, the canvass is
7 not complete until the presentation to the board of supervisors is made.

8 C. If, at the time of the meeting of the governing body, the
9 returns from any polling place in the election district where the polls
10 were opened and an election held are found to be missing, the
11 ACKNOWLEDGEMENT WITHOUT PREJUDICE OF THE canvass OF THE ELECTION shall be
12 postponed from day to day until all the returns are received [FROM THE
13 OFFICER WHO CONDUCTED THE ELECTION AND CERTIFIES ITS ACCURACY UNDER OATH
14 AND THE OFFICER WHO TABULATED THE BALLOTS AND CERTIFIES THE RESULTS OF THE
15 TABULATION UNDER OATH.] or until six postponements have been had. ~~The~~
16 THIS subsection does not apply to the county board of supervisors'
17 ACKNOWLEDGEMENT WITHOUT PREJUDICE OF THE canvass of the primary and
18 general election.

19 <<Sec. 2. Section 16-645, Arizona Revised Statutes, is amended to
20 read:

21 16-645. Canvass and return of precinct vote; declaring
22 nominee of party; certificate of nomination;
23 write-in candidates

24 A. When the board of supervisors, or the governing body of a city
25 or town, [HAS RECEIVED THE SWORN STATEMENTS OF THE OFFICER WHO CONDUCTED
26 THE ELECTION AND THE OFFICER WHO TABULATED THE BALLOTS AS PRESCRIBED BY
27 SECTION 16-642 AND] has completed its canvass of precinct returns, the
28 person having the largest number of votes, or if more than one candidate
29 is necessary, those candidates to the required number who have received
30 the largest number of votes for the nomination for an office in the
31 political party of which the person was set forth on the ballot as a
32 candidate for the nomination, shall be declared the nominee of the party
33 for that office and shall be given a certificate of nomination for that
34 office by the board or governing body, which shall entitle the person to
35 have the person's name placed on the official ballot at the ensuing
36 election as the nominee of the party for the office. When canvassing
37 write-in votes the apparent intent of the voter shall be taken into
38 consideration to the extent possible and the standard prescribed for
39 federal write-in candidates in section 16-543.02, subsection C applies.

40 B. The board of supervisors shall deliver the official canvass by
41 electronic means to the secretary of state within thirteen calendar days
42 after the primary election, and the secretary of state shall on or before
43 the third Thursday following the primary election canvass the return and
44 issue a letter declaring nomination as provided in this section to the
45 nominees who filed nominating petitions and papers with the secretary of
46 state pursuant to section 16-311, subsection D. For any partisan primary
47 election, the governing body or officer in charge of elections shall

1 prepare and transmit to the secretary of state along with the official
2 canvass the total by party of partisan ballots selected in that primary
3 election by voters who registered as no party preference, as independents
4 or as members of a political party that is not qualified for
5 representation on the ballot.

6 C. A certificate of election shall not be issued to a write-in
7 candidate for precinct committeeman or a write-in candidate for a
8 nonpartisan office unless the candidate receives a number of votes
9 equivalent to at least the same number of signatures required by section
10 16-322 for nominating petitions for the same office.

11 D. Except as provided in subsection C of this section, a letter
12 declaring nomination shall not be issued to a write-in candidate of a
13 party that has not qualified for continued representation on the official
14 ballot pursuant to section 16-804 unless the candidate receives a
15 plurality of the votes of the party for the office for which the candidate
16 is a candidate.

17 E. Except as provided by subsection C of this section, a letter
18 declaring nomination shall not be issued to a write-in candidate of a
19 party qualified for continued representation on the official ballot unless
20 the candidate receives a number of votes equivalent to at least the same
21 number of signatures required by section 16-322 for nominating petitions
22 for the same office.

23 F. A certificate of election shall not be issued to presidential
24 electors who are pledged to a write-in candidate for president unless that
25 candidate received the highest number of votes cast for the office of
26 president.>>

27 Sec. 3. Section 16-646, Arizona Revised Statutes, is amended to
28 read:

29 16-646. Statement, contents and mailing of official canvass

30 A. When the result of the canvass is determined AND ACKNOWLEDGED
31 WITHOUT PREJUDICE AS PRESCRIBED BY SECTION 16-642, a statement[.] known
32 and designated as the official canvass, shall be entered on the official
33 record of the election district that[.] ~~shall show~~

34 [1.] SHOWS:

35 [1.] [(a)] The number of ballots cast in each precinct and in the
36 county.

37 [2.] [(b)] The number of ballots rejected in each precinct and in
38 the county.

39 [3.] [(c)] The titles of the offices voted for and the names of
40 the persons, together with the party designation, if any, of each person
41 voted for to fill the offices.

42 [4.] [(d)] The number of votes by precincts and county received by
43 each candidate.

44 [5.] [(e)] For each candidate race in each political subdivision
45 prescribed by section 16-204.01, the number of ballots cast and the number
46 of active registered voters in each political subdivision and portion of a
47 political subdivision for which a candidate may be elected.

1 ~~[6.] [(f)]~~ The numbers and a brief title of each proposed
2 constitutional amendment and each initiated or referred measure voted on.

3 ~~[7.] [(g)]~~ The number of votes by precincts and county for and
4 against such proposed amendment or measure.

5 ~~[2. INCLUDES A COPY OF THE SWORN STATEMENTS OF THE OFFICER WHO~~
6 ~~CONDUCTED THE ELECTION AND THE OFFICER WHO TABULATED THE BALLOTS AS~~
7 ~~PRESCRIBED BY SECTION 16-642.]~~

8 B. The certified permanent copy of the official canvass for all
9 offices and ballot measures ~~AND ITS ACKNOWLEDGMENT WITHOUT PREJUDICE BY~~
10 ~~THE CANVASSING BODY~~, except offices and ballot measures in a city or town
11 election and nonpartisan election returns, shall be mailed immediately to
12 the secretary of state who shall maintain and preserve it as a permanent
13 public record.

14 C. The board of supervisors shall first mail with a postmark or
15 other similar date and time indicator, then deliver electronically a copy
16 of the official canvass for all offices and ballot measures in the primary
17 and general elections to the secretary of state in a uniform electronic
18 computer media format that shall be agreed on between the secretary of
19 state and all county election officials. The uniform format shall be
20 designed to facilitate the computer analysis of election results for
21 offices and ballot measures that are statewide or are common to more than
22 one county. The electronic copy of the official canvass from the board of
23 supervisors is sufficient for the secretary of state to conduct and issue
24 the statewide canvass if the electronic copy includes a scan or other
25 similar evidence that the paper official canvass was mailed before the
26 electronic version was sent.

27 D. The certified permanent copy of the official canvass for all
28 offices and ballot measures in a city or town election ~~AND ITS~~
29 ~~ACKNOWLEDGMENT WITHOUT PREJUDICE BY THE GOVERNING BODY [AND A COPY OF THE~~
30 ~~SWORN STATEMENTS OF THE OFFICER WHO CONDUCTED THE ELECTION AND THE OFFICER~~
31 ~~WHO TABULATED THE BALLOTS AS PRESCRIBED BY SECTION 16-642]~~ shall be filed
32 with the appropriate city or town clerk, or in a special district election
33 with the clerk of the board of supervisors, who shall maintain and
34 preserve it as a permanent public record.

35 Enroll and engross to conform

36 Amend title to conform

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C: MR

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